

25LBCV00347 25LBCV00347

County: los-angeles

Division: Civil Law and Motion

Department: S27

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Case Number: 25LBCV00347 Hearing Date: July 30, 2026 Dept: S27

1. Background

Facts

This is a negligence action arising out of a slip and fall incident that occurred on or about September 2, 2023, wherein Plaintiff Maria Franco ("Plaintiff") sustained injuries and damages. On February 11, 2025, Plaintiff filed the operative Complaint against Defendants 7-Eleven Store #20679; 7-Eleven, Inc.; Asha Investments, Inc. d/b/a 7-Eleven; and DOES 1 through 100 (collectively, "Defendants"), asserting a sole cause of action for Premises Liability – Negligence.

On March 17, 2025, Defendant 7-Eleven, Inc. filed its Answer to the Complaint and Cross-Complaint against ROES 1 through 100, asserting causes of action for: (1) Equitable Indemnity and (2) Declaratory Relief.

On June 2, 2025, default was entered against Defendant Asha Investments, Inc. d/b/a 7-Eleven. On July 30, 2025, default was entered against Defendant 7-Eleven Store #20679.

On February 11, 2025, Plaintiff filed the instant Request for Default Judgment against Defendants Asha Investments, Inc. d/b/a 7-Eleven and Defendant 7-Eleven Store #20679 (collectively, "Defaulting Defendants").

2. Legal

Standard

California Code of Civil Procedure

Section 585 permits entry of a default judgment after a party has failed to timely respond or appear. (Code Civ. Proc., § 585.) "A party seeking a default judgment on declarations must use mandatory Request for Entry of Default (Application to Enter Default) (form CIV-100), unless the action is subject to the Fair Debt Buying Practices Act, Civil Code section 1788.50 et seq., in which case the party must use mandatory Request for Entry of Default (Fair Debt Buying Practices Act) (form CIV-105)." (Cal. Rules of Ct., rule 3.1800, subd. (a).) The default judgment packet must include: 1) a brief summary of the case; (2) declarations or other admissible evidence in support of the judgment requested; (3) interest computations as necessary; (4) a memorandum of costs and disbursements; (5) declaration of nonmilitary status; (6) a proposed form of judgment; (7) a dismissal of all parties against whom judgment is not sought or an application for separate judgment under CCP § 579, supported by a showing of grounds for each judgment; (8) exhibits as necessary; and (9) a request for attorney's fees if allowed by statute or by the agreement of the parties. (Id.)

"The relief granted to the plaintiff, if there is no answer, cannot exceed that demanded in the complaint, in the statement required by Section 425.11, or in the statement provided for by Section 425.115...."(Code Civ. Proc., § 580, subd. (a).) "Section 580 is strictly construed 'in accordance with its plain language'" (Airs Aromatics, LLC v. CBL Data Recovery Technologies, Inc. (2018) 23 Cal.App.5th 1013, 1018.) Therefore, "[w]hen a trial court, in a default judgment, has entered a judgment for a type of relief not requested in the complaint the judgment is void." (Finney v. Gomez (2003) 111 Cal.App.4th 527, 550.)

3. Discussion

Plaintiff seems to move for default judgment against Defaulting Defendants in the total amount of \$180,000.00 consisting of: (1) \$90,514.93 in special damages and (2) \$109,485.07 in general damages less \$20,000.00 in credits acknowledged. (See CIV-100, Item 2(a)-(b).) However, the following defects preclude granting default judgment at this time:

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Item 2(a) of the CIV-100 form indicates that the demand of the complaint was \$200,000.00, however, the complaint did not specify

a demand amount;

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There is no proposed judgment form, ideally on JUD-100 form, filed with the default judgment packet per California Rules of Court, rule 3.1800, subd. (a)(6); and

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Plaintiff's counsel states that the Statement of Damages ("SOD") attached as Exhibit F to the declaration in support of default judgment was served on Defaulting Defendants but the proof of service accompanying the SOD is blank. (Saboorian Decl., ¶11, Ex. F.) Furthermore, no proof of service regarding the SOD is filed separately with the Court. As such, the default judgment packet fails to demonstrate when and how the SOD was served on Defaulting Defendants in compliance with Code of Civil Procedure Section 425.11, subdivision (c).

4. Conclusion

Based on the foregoing, Plaintiff Maria Franco's Request for Default Judgment is DENIED without prejudice. The Court will discuss with Plaintiff a schedule for resubmission of the default judgment packet.

Plaintiff Maria Franco is ordered to give notice.